

It is, of course, a matter of no great moment in what order the issues between the parties in the present litigation are tried. What is disturbing is the process by which the Court arrives at its decision—a process which appears to disregard the historic relationship between equity and law.

I.

The Court suggests that “the expansion of adequate legal remedies provided by the Declaratory Judgment Act . . . necessarily affects the scope of equity.” Does the Court mean to say that the mere availability of an action for a declaratory judgment operates to furnish “an adequate remedy at law” so as to deprive a court of equity of the power to act? That novel line of reasoning is at least implied in the Court’s opinion. But the Declaratory Judgment Act did not “expand” the substantive law.

of competition between the theatres would be determinative of little or nothing in the counterclaim for damages. “The fact issue in the action for equitable and declaratory relief is whether the Fox West Coast California Theatre and the Petitioner’s drive-in are substantially competitive with each other. The fact issue in the counterclaim is whether the cross-defendants and co-conspirators therein named conspired together in restraint of trade and to monopolize in the manner alleged in the counterclaim. Absent conspiracy, whether or not the distributors licensed a single first run picture to Petitioner’s drive-in, be it in substantial competition or not in substantial competition with other first run theatres in the San Bernardino area, Petitioner will not have made out a case on its counterclaim. . . . If Petitioner on its counterclaim should fail to prove conspiracy the issue of competition between the theatres is meaningless. If Petitioner on the other hand succeeds in proving the allegations of its counterclaim, the conspiracy to monopolize first run and to discriminate against the new drive-in, the existence or non-existence of competition between the theatres would exculpate none of the alleged wrongdoers, although if there was an absence of competition between the drive-in and the other first run theatres, as Petitioner contended in its answer to the complaint, it might have some difficulty proving injury to its business.”